

## 25STCV02535 25STCV02535

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-15

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Case Number: 25STCV02535 Hearing Date: September 15, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

TOMAS MONTES DE OCA

vs.

CARINA HERNANDEZ, et al.

Case

No.: 25STCV02535

Hearing Date: September 15, 2026

Defendant Line

Crew Investments, LLC's motion to dismiss is DENIED, WITHOUT PREJUDICE.

On 1/29/2025,

Plaintiff Tomas Montes De Oca (Plaintiff) filed suit against Carina Hernandez, Synergia Investments, LLC, Line Crew Investments, LLC, Jesus Montes Martinez, and Century 21 Synergia Realty, alleging: (1) cancellation of instrument; (2) cancellation of instrument; (3) cancellation of instrument; (4) breach of

fiduciary duty; (5) negligence; (6) fraud and deceit; and (7) accounting.

On

6/12/2026, Defendant Line Crew Investments, LLC (Defendant) moved to dismiss.

Discussion

Defendant

moves to dismiss this action on the grounds that Plaintiff failed to file a second amended complaint (SAC), following the Court's 4/15/2026 ruling sustaining Defendant Jesus Montes Martinez's demurrer, with 20 days leave to amend.

However,

by its own admission, Defendant filed an answer to Plaintiff's FAC. The 4/15/2026 demurrer was based on a determination that the claims against Defendant Martinez were insufficiently pled. Defendant advances no such argument that the claims against it were insufficiently pled, or that it joined in the Martinez demurrer.

The

appropriate action for Defendant is to move for terminating sanctions based on failure to prosecute.

Based

on the foregoing, Defendant Line Crew Investments, LLC's motion to dismiss is denied, without prejudice.

It is so ordered.

Dated: September  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must

send an email to the court at [smcdept17@lacourt.org](mailto:smcdept17@lacourt.org)  
by 4 p.m. the day prior as directed by the instructions provided on the court  
website at [www.lacourt.org](http://www.lacourt.org). If a party submits  
on the tentative, the party's email must include the case number and must  
identify the party submitting on the tentative.  
If all parties to a motion submit, the court will adopt this  
tentative as the final order. If the department  
does not receive an email indicating the parties are submitting on the  
tentative and there are no appearances at the hearing, the motion may be placed  
off calendar. For more information, please contact the court clerk at (213)  
633-0517.